

Rules Made under the U.P. Indian Medicine Act, 1939

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State of Uttar Pradesh - Act

Rules Made under the U.P. Indian Medicine Act, 1939

UTTAR PRADESH

India

Rules Made under the U.P. Indian Medicine Act, 1939

Rule RULES-MADE-UNDER-THE-U-P-INDIAN-MEDICINE-ACT-1939 of 1939

Published on 19 November 1954

Commenced on 19 November 1954

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Rules Made under the U.P. Indian Medicine Act, 1939

Published vide Notification No. U-2697-B/5-1312 (7)-54, dated 19th November, 1954

[Rules under Sections 27 and 42 (2) (h)]

In exercise of the powers conferred by Section 27 and sub-section (2) of Section 42 of the U.P. Indian Medicine Act, 1939 (U. P. Act No X of 1939), the Governor has been pleased to make the following rules, the same having been previously published vide Notification No. U-1527-BI/V-1012 (7) 52, dated 4th December, 1953, as required by sub-section (1) of Section 42 of the same Act :

1.

An appeal under Section 27 shall be submitted in writing to the Chairman and shall state the grounds on which registration is claimed, and shall be accompanied by a fee of Rs. 5 which shall not be refundable. A true copy of the degree, certificate or diploma, on which claim for registration is based shall be filed with the appeal, if not already filed

with the application for registration.

2.

An appeal, when received shall be submitted by the Registrar to the Registration Committee of the Board for consideration and report.

3.

The Committee may call for the original degree, certificate or diploma, etc. from the appellant for inspection and also such other documentary or oral evidence, as may be considered necessary by them.

4.

The Committee shall submit its report together with its recommendations to the Board.

5.

The memorandum of appeal, the report and recommendations of the Committee and all other documents received in connection with the appeal shall be laid before the Board at their next meeting for final disposal.

6.

The date on which the appeal is to be taken up by the Board shall be intimated to the appellant and he shall be given an opportunity to represent his case before the Board.

7.

The Board shall then decide the appeal and record its reasons for agreeing or disagreeing with the decision of the Registrar and the orders of Board shall be communicated by the Registrar in writing to the appellant, within a week from the date on which the orders are passed.

[Rules to Make Complaint in Respect of an Offence]

[Vide Notification No. 3019-CI/V-1843-54, dated 1st August, 1963, published in U. P. Gazette , Part 1-A, dated 10th August, 1963, p. 2225.]

In exercise of the powers under Section 42, read with sub-section (2) of Section 48 of the U.P. Indian Medicine Act, 1939 (U.P. Act No. X of 1939) the Governor of Uttar Pradesh is pleased to make the following rules, the same having been previously published with Notification No. 1019-CI/V-1843-85, dated 20th June, 1963, required by sub-section (1) of Section 42 of the said Act ;

Rules

Each one of the following officers is empowered to make a complaint in respect of an offence under the U.P. Indian Medicine Act, 1939 (U.P. Act X of 1939) ;

(1)

The Registrar, Board of Indian Medicine, Uttar Pradesh.

(2)

The Director of Ayurvedic and Unani Services, Uttar Pradesh.

(3)

The Assistant Director of Ayurvedic and Unani Services, Uttar Pradesh.

(4)

The Divisional Ayurvedic/Unani Officers.

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